

Franciscus Dylan Rosario,
7624 Melody,
Rohnert Park, CA 94928,
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,
PLAINTIFF,**

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

**Case No.: CGC-25-631802
PLAINTIFF EXHIBITS A-E
COMBINED
ISO OPPOSITION**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

**ELECTRONICALLY
FILED**

*Superior Court of California,
County of San Francisco*

07/22/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

This volume lodges Plaintiff's Exhibits A through E in support of Plaintiff's Opposition to Defendant's Vexatious Litigant Motion (Hearing: August 26, 2026, 9:00 a.m., Dept. 302).

Contents (bookmarks):

Exhibit A: July 6, 2026 letter to Porter Scott (limited scope of July 1 order)

Exhibit B: Sample service / scheduling / meet-and-confer emails

Exhibit C: Discovery covers (claims-file / 911 / BWC / CAD focus)

Exhibit D: Wong RT 11 excerpt (Vehicle Code not part of the evidence)

Exhibit E: ROA motion-stack chart (leave / anti-SLAPP / demurrer stack)

Assembled July 21, 2026. Prefer this combined volume over individual EX-A through EX-E unless the portal requires separate uploads.

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
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**Franciscus Dylan Rosario,
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CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

**Case No.: CGC-25-631802
PLAINTIFF'S EXHIBIT A**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

July 6, 2026 letter to Porter Scott re limited scope of July 1, 2026 order

Bates: P-OPP-EXA-0001 et seq. (source defense Bates approx. 0029-0034)

Source: Defense Declaration of Tyler J. O'Connell, Exhibit 1 email dump.

Extract: Decl. PDF pages 35-40 (July 6, 2026 letter body and email header).

Use: Decl. paragraph 15; Opp. MPA Arg. III.B.

Lodged ISO Plaintiff's Opposition to Defendant's Vexatious Litigant Motion.

Assembled July 21, 2026. Do not treat this cover as a reverse-Wong or A173827 ask.



Chad S. Tapp

Attorney | Shareholder

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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Monday, July 6, 2026 3:44 PM

To: Tyler O'Connell <toconnell@porterscott.com>; Chad S. Tapp <ctapp@porterscott.com>;
Stephanie Hengl <shengl@porterscott.com>; Serena Blithe <sblithe@porterscott.com>

Subject: Order Granting Special Motion to Strike First Amended Complaint and Denying Other Relief (filed July 1, 2026)

*****External email*****

Date: July 6, 2026

From:

Franciscus Dylan Rosario, Plaintiff in Pro Per
7624 Melody Dr.
Rohnert Park, CA 94928

To:

Tyler J. O'Connell, Esq.
Porter Scott, A Professional Corporation
2180 Harvard Street
Sacramento, CA 95815
Counsel for Defendant CSAA Insurance Exchange

Re: *Franciscus Dylan Rosario v. CSAA Insurance Exchange*, Case No. CGC-25-631802

Order: Order Granting Special Motion to Strike First Amended Complaint and Denying Other Relief (filed July 1, 2026)

Dear Mr. O'Connell and Porter Scott Team:

This letter puts CSAA and its counsel on notice of Plaintiff's position on the scope of the July 1, 2026 anti-SLAPP order in CGC-25-631802 and Plaintiff's retained right to pursue unadjudicated causes of action in a new action. Plaintiff provides this notice in advance of filing so that any *res judicata*, *Simmons*, sham-pleading, or "FAC refile" objection can be evaluated now, against the order's four corners and controlling California authority, rather than raised reflexively later.

I. What the July 1, 2026 Order Actually Decided

Read on its face, the order is narrow. Department 301 held only that:

1. **Injury framing.** Plaintiff was "damaged because the letter led [him] to believe that evidence had been collected and preserved and CSAA had made an adequate investigation," and "the FAC pleads that plaintiff was harmed by the representation."
2. **Prong one.** The FAC "arises from protected activity" because "Plaintiff's action is based on defendant's litigation conduct" (FAC paragraph 22F), and the pre-litigation denial letter also implicates the anti-SLAPP statute (FAC paragraphs 1, 2, 4, and 22D).
3. **Prong two.** In one sentence: "Plaintiff cannot establish his claims because the litigation privilege bars them." Civil Code section 47(b) was extended to "defendant's defense conduct including the prelitigation denial letter."
4. **Amendment.** Denied within Case 802 under *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073.
5. **Everything else.** Demurrer, motion to strike, motion to compel, and related motions were taken off calendar as moot.

The court cited exactly five FAC paragraphs: 22F, 1, 2, 4, and 22D. That citation set defines the universe of FAC content the order actually engaged. No claim-by-claim gravamen analysis was performed under *Baral v. Schnitt* (2016) 1 Cal.5th 376, or *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995. The court did not adjudicate:

- 10 CCR section 2695.7(d) (reasonable investigation);
- Insurance Code section 790.03(h) (unfair claims practices);
- Civil Code section 1710(3) (fraud by concealment);
- Constructive fraud under *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, and *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713;
- Negligence per se under Evidence Code section 669;
- UCL predicates under Business and Professions Code section 17200; or
- Declaratory relief under Code of Civil Procedure section 1060.

The court struck a communication-framed theory. It did not, and on the record before it could not, strike institutional-omission theories that were never pleaded and never analyzed under a *Park* gravamen lens.

II. *Res Judicata* Does Not Bar a New Action on Different Primary Rights

California uses the primary-right doctrine. Claim preclusion bars a second action only where it seeks vindication of the same primary right the first proceeding actually adjudicated. *Crowley v. Katleman* (1994) 8 Cal.4th 666, 681-682; *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904. The primary right is defined by the specific legal injury, not by shared facts or a shared defendant. *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 797-798; see *Bagley v. TRW, Inc.* (1999) 73 Cal.App.4th 1092, 1097-1099.

The primary right adjudicated in Case 802 is the right to be free from harm caused by CSAA's communications (the denial letter and litigation conduct). That right was extinguished on privilege grounds. The following are separate primary rights and were not adjudicated:

Primary right (new complaint)	Why it is not the 802 primary right
Freedom from certifying a "concluded" investigation without obtaining 911 audio, BWC, and CAD records (10 CCR section 2695.7(d))	Institutional omission complete before any letter describes it
Freedom from concealment of an empty file (Civil Code section 1710(3))	Actionable silence, not the words in the denial
Freedom from constructive fraud in the special insurer-claimant relationship (<i>Egan; Wilson</i>)	Breach of fiduciary and regulatory duty
Freedom from regulatory breach as negligence per se (Evid. Code section 669)	Standard-of-care violation
Freedom from unfair claims practices (Ins. Code section 790.03(h))	Failure to investigate, settle, or explain
UCL unlawful, unfair, or fraudulent business practices (Bus. & Prof. Code section 17200)	Predicated on regulatory breach
Declaratory relief (CCP section 1060)	Not speech; not petitioning

Issue preclusion is also unavailable. Under *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341, an issue must have been "actually litigated" and "necessarily decided." The July 1 order did neither with respect to any of the primary rights listed above.

III. Anti-SLAPP Reaches Allegations, Not Cases

Section 425.16 targets "allegations of protected activity," not entire cases and not causes of action whose gravamen is non-communicative institutional conduct. *Baral*, 1 Cal.5th at 393-396; *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060; *Bonni*, 11 Cal.5th at 1009-1012. A claim survives if the speech or petitioning activity is "evidence of liability" rather than "the wrong itself." *Park*, 2 Cal.5th at 1060.

The July 1 order cited *Park* and then collapsed prong two into a single privilege ruling about the denial letter and litigation conduct. It did not perform the claim-by-claim gravamen inquiry *Bonni* requires. That procedural choice, not any merits determination, is what leaves the non-communicative field open.

Section 47(b) likewise reaches communications, not the underlying non-communicative conduct they may later describe. *Kimmel v. Goland* (1990) 51 Cal.3d 202, 209-213; *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1058-1062; *White v. Western Title Ins. Co.* (1985) 40 Cal.3d 870, 887-888; *Trilogy Plumbing, Inc. v. Navigators Specialty Ins. Co.* (2020) 50 Cal.App.5th 920, 933. Mishandling of the claims process, including failure to investigate before certifying an investigation as "concluded," is not protected petitioning even when litigation follows.

The gravamen of the forthcoming action is a sequence of institutional acts between February 4 and February 25, 2021: CSAA did not obtain foundational objective evidence; CSAA certified its investigation as "concluded" without it; CSAA denied without attempting settlement although the insured's admission made liability reasonably clear; CSAA concealed the empty file until discovery events in the underlying trial. None of those acts is speech. The denial letter is downstream evidence, not the tort.

IV. *Simmons* Bars Amendment in Case 802, Not a New Action

Simmons is an intra-case rule. It bars amendment within the same case once an anti-SLAPP motion is granted. It does not bar a new action on different primary rights with different elements. *Contreras v. Dowling* (2016) 4 Cal.App.5th 774, 791 (bar directed at amendments designed to subvert the strike within the same case); *JKC3H8, Inc. v. Colton* (2013) 221 Cal.App.4th 468, 477-478 (non-targeted claims survive). Plaintiff accepts the *Simmons* bar as to Case 802. The bar does not extend to a separately filed action on different primary rights.

V. Use of CSAA's Anti-SLAPP Record as Evidence, Not as Preclusion

CSAA's anti-SLAPP briefing recited the falsity-when-made and failure-to-obtain facts, then asserted immunity. On a new complaint pleading different primary rights, those recitals are party admissions usable to prove the underlying institutional tort under Evidence Code sections 1220 and 1222 and *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986-987. They are not preclusion weapons against a primary right the court never adjudicated.

VI. Design of the Forthcoming Complaint

The forthcoming complaint:

1. Accepts the court's category ruling as to the FAC paragraphs it struck and omits them;
2. Disavows communication as the gravamen of liability;
3. Passes the removal test, meaning that every count stands on institutional acts and omissions if every communication reference is deleted;
4. Uses the denial letter, MILs, and trial statements only as documentary evidence under *Park* and *Kimmel*, not as the wrong;
5. Pleads accrual and tolling grounded in concealment, with an April 16, 2025 discovery anchor, which the July 1 order also did not adjudicate.

This is not a "refile in disguise" and is not sham pleading. It is the ordinary and legally required consequence of a narrow anti-SLAPP ruling entered in a mixed-conduct universe, which is the universe *Baral*, *Park*, and *Bonni* were written to govern.

VII. Closing

The July 1, 2026 order does three things for future litigation and only three: it strikes a communication-framed First Amended Complaint; it applies sections 425.16 and 47(b) to that framed theory; and it denies intra-case amendment under *Simmons*. It does not adjudicate CSAA's failure to obtain foundational evidence, does not decide regulatory breach under 10 CCR section 2695.7(d) or Insurance Code section 790.03(h), does not decide fraud, concealment, UCL, settlement failure, or declaratory relief on non-communicative grounds, and does not hold that *res judicata* bars different primary rights.

Under *Crowley*, *Mycogen*, *Boeken*, *Lucido*, *Baral*, *Park*, *Bonni*, and *Kimmel*, Plaintiff retains the right to file a new complaint that adjudicates CSAA's institutional failure of duty on its own non-communicative terms. Plaintiff will file that complaint in due

course. Plaintiff is also coordinating with the California Department of Insurance regarding the underlying regulatory issues, and is prosecuting appellate review of the orders in Cases 801 and 802 under California Rules of Court, rule 8.104. Appellate review is de novo as to both prongs, so the 801 and 802 orders remain live.

Plaintiff's position, stated plainly: no amount of privilege immunizes fraud, and discovery of the concealed conduct during a related proceeding does not confer retroactive immunity on the underlying acts. The next action is not about what CSAA said. It is about what CSAA did and failed to do, specifically the failure to investigate, the certification that an investigation had been completed when it had not, and the concealment of that failure. None of those acts is communicative. All of them are in the next complaint. Any *res judicata*, *Simmons*, sham-pleading, or "FAC refile" objection will be evaluated against the authorities and record citations above.

Conduct yourself accordingly.

/s/ Franciscus Dylan Rosario
Franciscus Dylan Rosario
Plaintiff in Pro Per

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E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
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**Franciscus Dylan Rosario,
PLAINTIFF,**

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

**Case No.: CGC-25-631802
PLAINTIFF'S EXHIBIT B**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Sample service / scheduling / meet-and-confer emails (non-insult threads)

Bates: P-OPP-EXB-0001 et seq.

Source: Defense O'Connell Decl. Exhibit 1 (selected pages only; insult threads excluded).

Samples: (1) May 12 hearing/appeal scheduling inquiry; (2) May 26 CCP 128.7 meet-and-confer / e-service notice; (3) June 22-23 FileAndServeXpress transaction-receipt / hearing scheduling thread.

Use: Decl. paragraph 18; rebuttal to incomplete Ex. 1 compilation.

Lodged ISO Plaintiff's Opposition to Defendant's Vexatious Litigant Motion.

Assembled July 21, 2026. Do not treat this cover as a reverse-Wong or A173827 ask.

From: Dylan Rosario
To: [Serena Blithe](#); [Tyler O'Connell](#); [Maria Reyes](#); [Veronica Jackson](#); [Priya Navaratnasingham](#); [Alberto Reyna](#)
Subject: Re: Case No. CGC-25-631801 -- Bench Brief for May 12, 2026 Hearing (9:30 a.m., Dept. 301)
Date: Tuesday, May 12, 2026 12:59:25 PM
Attachments: [PLAINTIFF-REQUEST-FOR-JUDICIAL-NOTICE-AND-STATEMENT-OF-APPELLATE-PRESERVATION-MAY-11-2026-CGC-25-631801.pdf](#)
[POS-050-20-SECOND-SUPPLEMENTAL-RJN-AND-APPELLATE-PRESERVATION-MAY-11-2026.pdf](#)

External email

Hi Tyler,

I hope you are doing well.

I am writing to inquire whether you will be the attorney handling the appeal for Case No. CGC-25-631801. Given the rapport we have developed throughout the underlying litigation, I would prefer to continue working with you as opposing counsel. Specifically, I am interested to know if your current retention for the defense extends to the appellate level, or if your firm intends to bring in separate counsel to handle the appeal.

If there is to be a substitution of attorney, please let me know at your earliest convenience. On a related note, it is my understanding that the issue of fee reversal may be stayed during the pendency of the appeal, though I plan to verify the specific procedural requirements regarding that freeze.

I would appreciate any clarity you can provide on who will be representing the defense moving forward. If they plan to bring in a more senior counsel, I couldn't care less; I simply believe that the rapport we've built gives us a highly effective chemistry. (I sent a message to this effect late last night, so please excuse any duplication if it was eventually delivered).

I expect I will be seeing you tomorrow on the second case. I am curious to hear what your complex special counsel thought of today's hearing.

The beauty of Case 801 is that we secured a substantial amount of discovery on the record prior to the judge issuing a ruling. This means that all records regarding the defense's suppression of evidence—and the court's reliance on their reckless disregard for the truth, will be front and center on appeal. I am glad I ignored your suggestion to withhold those documents; ensuring the record accurately reflects the reality of the situation is paramount. Fortunately, we established a robust docket, and the appellate court will have plenty to read. As you already know, the trick is identifying the fundamental basis and standing.

Extrinsic fraud is grounds for vacating the original, illegally procured judgment. I will not stop pushing forward until the court has fully, and I mean completely, adjudicated every single statement and misrepresentation made by your clients. You may have bought yourself a little bit of time, but I suppose that is your role here: playing the delay game. I am just wondering when the actual *defense* comes into play, because we both know the denials have been thoroughly documented.

Best regards,

Dylan Rosario

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From: Dylan Rosario
To: [Tyler O'Connell](#); [Chad S. Tapp](#); [Monique Schubert](#); [Maria Reyes](#); [Veronica Jackson](#); [Serena Blithe](#)
Cc: [department206@sftc.org](#); [Intake@calbar.ca.gov](#); [fraud@insurance.ca.gov](#); [investigations@insurance.ca.gov](#)
Subject: MAC: CCP §128.7(c)(1) and California Rules of Professional Conduct 3.3(a)(2)
Date: Tuesday, May 26, 2026 12:46:01 PM

*****External email*****

CSA Panel Counsel: Tyler, Chad, Serena, Monique, Reyes, and Jackson,

This is a formal meet and confer under CCP §128.7(c)(1) and California Rules of Professional Conduct 3.3(a)(2). Please treat this email as my written demand and as the operative safe harbor notice.

You were served today. As of this morning, May 26, 2026, you received electronic service via File and ServeXpress of the following notices bearing directly on this demand: the Notice of Directly Adverse Authority (RPC 3.3(a)(2), JKC3H8), the Notice of Additional Directly Adverse Authority (Dickinson / Newport Harbor), the Notice of Threshold Authority (Inland Oversight / CCP §425.17(c)), the RFJN of CCP §425.17 and Commercial-Speech Exemption Opinions, and the RFJN of JKC3H8 v. Colton and Newport Harbor. You also received the §128.7 sanctions motion bundle, including the notice, memo, declaration, and RFJN, all of which are now on file in Dept. 302 and pending clerk review. You have the portal receipts. You have the exhibits. You have been noticed.

The core problem. Your anti-SLAPP motion and your supporting papers omit two categories of directly adverse controlling authority you were obligated to disclose under RPC 3.3(a)(2):

1. CCP §425.17(c) -- The California Legislature enacted this provision specifically to eliminate anti-SLAPP protection for defendants, like CSAA, that are commercial insurers providing services to the public. This is not an obscure statute. It is the threshold exemption that terminates the anti-SLAPP analysis before burden-shifting even begins. Your motion does not cite it, does not distinguish it, and does not acknowledge it exists.
2. JKC3H8 v. Colton / Newport Harbor -- These decisions apply the commercial-speech exemption in contexts directly analogous to the conduct at issue here. Your opposition to my MFL-SAC stated "no such authority" exists. That representation was false. The authority exists. It was controlling. You did not disclose it.

Both omissions violate RPC 3.3(a)(2). Both were material to the Court's analysis. Both have now been placed in front of Dept. 302 by me, not by you.

This is not the first department that has seen this. I have already presented these same violations to Department 301 in the companion matter CGC-25-631801. The record in that case reflects the same pattern of omission on the same threshold legal questions. I am raising it here because the consolidated docket makes it directly relevant to the June 24 hearing, and because the Court in both departments is entitled to a full and accurate record.

What I am asking you to do. Under CCP §128.7(c)(1), you have 21 days from the date of service of the §128.7 motion -- served today -- to voluntarily withdraw or correct the offending pleadings. Specifically, I am asking you to:

1. Vacate or withdraw any motion, brief, or opposition paper in which you represented that no authority supports the CCP §425.17(c) commercial-speech exemption as applied to CSAA;
2. File a supplemental authority notice in both CGC-25-631802 and CGC-25-631801 disclosing JKC3H8 v. Colton, Newport Harbor, and the full text of CCP §425.17(c) to each respective department;
3. Confirm in writing whether you intend to maintain the anti-SLAPP motion in light of the §425.17(c) threshold exemption; and
4. Confirm in writing whether CSAA will stipulate that the anti-SLAPP discovery stay is inapplicable given the statutory exemption, and that Set Six discovery responses are owed without further delay.

If you take the corrective steps above within the safe harbor period, I will withdraw the §128.7 motion. If you do not, I will present the motion to the Court on June 24 and ask for sanctions, fees, and a finding of violation on the record.

Additional meet and confer items. While we are in contact, I am also raising the following issues that require a written response:

- Set Six discovery default. Responses were due and not served. Please confirm by June 2, 2026 whether CSAA will serve responses without objection or whether I should proceed with a motion to compel.
- Second reply papers (Tx 79430135). Your May 8, 2026 second reply was not authorized under CRC 3.1113. Please confirm whether you will stipulate to striking those papers from the record, or whether I should present the issue to the Court at the June 24 hearing.
- Improper new matter in demurrer reply. Your demurrer reply introduced arguments and evidence not raised in the

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moving papers. Please identify which arguments you intend to rely upon at the June 24 hearing so I have a fair opportunity to respond, or stipulate that the new matter is withdrawn.

Response deadline. Please respond in writing no later than Monday, June 2, 2026 at 5:00 p.m. If I do not hear from you by that date, I will treat your silence as a refusal to meet and confer in good faith and will notify the Court accordingly at the June 24 hearing.

Porter Scott and CSAA legal team, I am not interested in unnecessary motion practice. If there is a professional resolution here, I am open to it. But the record is going to reflect what it reflects, and the Court is going to have the full picture on June 24 regardless of whether we resolve this between us first.

Regards,

Franciscus Dylan Rosario,
Plaintiff (Self-Represented)
soltrinox@gmail.com
650.488.7510
May 26, 2026

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From: Dylan Rosario
To: [Chad S. Tapp](#)
Cc: [Tyler O'Connell](#); [Maria Reyes](#); [Stephanie Hengl](#)
Subject: Re: Case: CGC-25-631802; Transaction: 79843794 Transaction Receipt
Date: Tuesday, June 23, 2026 10:07:44 AM
Attachments: [ATT00001.htm](#)
[image001.png](#)

External email

Dear Chad and Tyler,

Regardless of your assessment of the filing, we will discuss these matters during tomorrow's hearing.

Your claim that the trial was fully litigated contradicts the record, in which the judge explicitly stated he did not fully adjudicate the merits of the underlying case. I suggest you review the case details regarding how the judgment was procured, as well as the judge's on-the-record statements concerning the jury instructions.

While you may characterize these facts however you wish, numerous witnesses were present when Judge Wong issued these rulings, and some of them will be in the courtroom tomorrow. I have been addressing your client's deception for months; the record remains clear, even if you choose to ignore it.

I look forward to your explanation of the court's prohibition on the jury's use of the law, specifically when the defense itself placed that law before them. If you truly believe this matter was fully adjudicated, please note that Judge Van Aken has not yet entered an order on case 801. We will await today's preliminary notice and address the 801 case misrepresentations, along with the omissions in 802, in court tomorrow.

Please take notice that I have requested a court reporter to record everything your law firm says regarding what your client knew, as well as all statements from the judge, so you can stop with the gaslighting. For some reason, Tyler continues to imagine that I was admonished about filing documents and pleadings. In reality, the judge stated that I am supposed to receive the preliminary ruling. He informed both me and the defense of this, and you will note that Tyler also admitted to not receiving the preliminary ruling from Judge Quinn. I do not know what type of admonishment you continue to imagine, but it is obvious you do not need artificial intelligence to hallucinate things, you manage to do it yourselves just fine.

Now that you have been put on notice regarding the legal violations in the underlying action, I appreciate your admission that you have read the filing. Given Tyler's apparent difficulties with reading comprehension, I would like to know what you actually plan to discuss tomorrow regarding the record, where the judge openly admits to blocking and refusing to apply the law that was placed in front of the jury.

Even if you want to frame this as a SLAPP, Tyler and Chad, it does not change the reality of what the judge said. The court is now on notice that your claim of the underlying trial being fully adjudicated is false; by Judge Wong's own admission, the law was withheld from the jury. Your entire affirmative defense asserting that the underlying trial was adjudicated on its merits is a fraudulent statement, and your client knows it.

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I am glad you acknowledge reading my filing, but just because you think it is "slop" does not make it false. Perhaps your problem, Chad, is that you are so concerned with form and presentation that you miss the forest for the trees. You need to look past the aesthetics and examine the fundamental merits of my case. I sincerely hope you appear in court tomorrow along with Tyler and the rest of your crew, so the people who know me can get a good look at the faces of individuals working for a multi-billion insurance company who simply cannot accept reality.

Your client procured the underlying verdict through extrinsic fraud. Your case was so weak that you needed a judge to manufacture law to help your clients win. Subsequently, two attorneys on the jury felt that your colleague, Garrett Wong—who is fortunately no longer on the bench, violated professional codes of conduct, the judicial code of conduct, and the Constitution of the United States. While I can only personally vouch for the judicial report I submitted to the judicial violations board regarding Judge Wong, his absence from the bench is undeniable. Whether due to my complaint, numerous complaints from other witnessing attorneys, or the recorded record itself, we know for a fact that the underlying case was never actually decided on the merits. Judge Wong left that evidence directly in the reporter's transcript when he clearly stated that he prohibited the jury from considering the law placed in front of them.

Either you and Tyler need to go back to law school to understand what that means, or you are completely delirious and have lost touch with the law. Perhaps the piles of insurance money you collect have caused you to lose your spine when it comes to standing up for the truth. This is highly indicative of what I have seen from your client: they are so afraid of the fact that they violated state law that they somehow convinced a judge to literally tell the jury they are not allowed to use the law right in front of them.

You could not win cleanly, so you figured out how to manipulate a judge, and it appears he lost his seat as a result. I do not think Judge Van Aken is going to make the same mistake. I believe the court fully understands the implications of what your client has been doing here since day one.

You are the ones who are either too afraid to face me on the merits, or who somehow literally believe your client is correct. I suggest you talk to your client about what happens next. If all of this goes up to the district court, you will have three different cases with the same judges looking directly at all of your client's contradictions, and there are quite a few of them.

I know you keep claiming that you are just doing your job and defending your client. However, defending your client also means telling them when to stop digging their own hole.

Conduct yourself accordingly,

F.D. Rosario
Plaintiff in Pro Per.

On Mon, Jun 22, 2026, 6:34 PM Chad S. Tapp <ctapp@porterscott.com> wrote:

I read it. Your entire pleading is such AI slop that it's unintelligible and I have no idea what you're seeking. Total garbage.

Good luck,



Chad S. Tapp

Attorney | Shareholder

[2180 Harvard Street | Suite 500 | Sacramento, CA 95815](#)
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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Monday, June 22, 2026 5:01 PM

To: Tyler O'Connell <toconnell@porterscott.com>; Chad S. Tapp <ctapp@porterscott.com>; Maria Reyes <mreyes@porterscott.com>; Stephanie Hengl <shengl@porterscott.com>

Subject: Re: Case: CGC-25-631802; Transaction: 79843794 Transaction Receipt

*****External email*****

On Mon, Jun 22, 2026 at 4:54 PM Dylan Rosario <soltrinox@gmail.com> wrote:

Dear Porter Scott Team,

I have reserved the attached filing for today. You have approximately 24 hours to redact your claims of immunity; otherwise, as you can see, this matter is now going before the judge.

0010

Please note that the Request for Judicial Notice runs outside of the reply regarding the objection to the anti-SLAPP demurrer. While Tyler has indicated he will not be reading this, I strongly suggest that the rest of your team does so.

Regards,

Frank Dylan Rosario
Plaintiff in pro per

----- Forwarded message -----

From: **FileAndServeXpress** <TransactionReceipt@secure-mail.fileandservexpress.com>

Date: Mon, Jun 22, 2026 at 4:47 PM

Subject: Case: CGC-25-631802; Transaction: 79843794 Transaction Receipt

To: <soltrinox@gmail.com>

To: Franciscus Dylan Rosario
Subject: Transaction Receipt

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Court: CA Superior Court County of San Francisco-Civil
Case Name: FRANCISCUS DYLAN ROSARIO VS. CSAA INSURANCE
EXCHANGE ET AL
Case Number: CGC-25-631802
Transaction ID: 79843794
Authorized Date/Time: Jun 22 2026 4:47PM PDT
Authorizer: Franciscus Dylan Rosario
Authorizer's Organization: (SRI)-Rosario, Franciscus
Sending Parties:
ROSARIO,, FRANCISCUS DYLAN
Served Parties:
CSAA Insurance Exchange
Document Title(s):
PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE OF APRIL 23, 2025 WONG
INSTRUCTION (CGC-21-594102) (27 pages)
Exhibits (18 pages)

Link to transaction details page where all documents can be viewed:

http://url9504.fileandservexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToF7jq5DqcgBVPeE3uSQzG-2BNKBwjWtDqSOw-2Fu7h6M-2FF4UkJYY7fSWkCzCK8NWI5qfkk-3DXKX1_yXrJZH7HFH9b7lSjjgLRgGQ6-2FaOdWzPP99uApXWo7FOdBR4-2FgyGxU-2BORnLRLQrWqbTjxB20hp44WhkdQ8auIF2v8vT5cKzGNvMTiKJM7wTkZjFPiPtvPM TfQKSBqYE2BbNWAABr-2B-2BD39nExH1-2Fyl-2BDIWDm2jKdez-2Bsp8KbJQyvA70Ab9hloT2w0HYP0dnlPEXH-2FwJPio8djz1ZaOt1SFHQ-3D-3D

Documents with direct links (The direct links will be available for your convenience for the next 7 days):

PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE OF APRIL 23, 2025 WONG
INSTRUCTION (CGC-21-594102) (Clerk review status: Pending):

[http://url9504.fileandservexpress.com/ls/click?
upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToGR-2BmNFS9kN-
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Exhibits (Clerk review status: Pending):

[http://url9504.fileandservexpress.com/ls/click?
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3D-3D](http://url9504.fileandservexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToGR-2BmNFS9kN-2BGRoMVZx8EtXj98kC44BkHOMm-2BJdBAPwwns-2BFL1Epox-2BcJkS-2BTp0n1l07rkDYWcCtCUxiJ8ps9V-2F1vorXFLmqYLIzDBJznrjmA-3D-3DydvS_yXrJZH7HFH9b7lSjjgLRgGQ6-2FaOdWzPP99uApXWo7FOdBR4-2FgyGxU-2BOrNLRLQrWqpFbiyXtzBm3psD6wUaUxna969bJEWwFjqyTiYa-2BUTyO-2FHCJaf5oucno-2Fe-2BVJY-2FikvA-2FZCNxH0CxJEHgZuUGCA0-2F-2FmNrhl2lpq7kprVYHV9OFFYd4Ku15AX1ZBt2I745V-2BL3yH0RKu9kHDZq0Urcg-3D-3D)

Additional Recipients:

TYLER OCONNELL
Monique Schubert
CHAD TAPP
DEPT 302
Rebekah Morrissey
investigations insurance
DEPT 302

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0012

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,
PLAINTIFF,**

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

**Case No.: CGC-25-631802
PLAINTIFF'S EXHIBIT C**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Discovery covers / first pages: claims-file / 911 / BWC / CAD focus

Bates: P-OPP-EXC-0001 et seq.

Source: Defense O'Connell Decl. Exhibit 2 region.

Extract: RFA Set Three cover + 911/BWC/CAD pages; Special Interrogatories Set Three cover + failure-to-investigate pages.

Use: Decl. paragraph 17; Evidentiary Objections to O'Connell paragraph 13 / Ex. 2.

Lodged ISO Plaintiff's Opposition to Defendant's Vexatious Litigant Motion.

Assembled July 21, 2026. Do not treat this cover as a reverse-Wong or A173827 ask.

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CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S REQUESTS FOR
ADMISSION TO DEFENDANT CSAA,
SET THREE**

[Code Civ. Proc., § 2033.010 et seq.]

INSTRUCTIONS

Pursuant to Code of Civil Procedure sections 2033.010 et seq., Plaintiff Franciscus Dylan Rosario propounds the following Requests for Admission (Set Three) to Defendant CSAA Insurance Exchange. Responses are due within 30 days of service.

Purpose and Legal Framework: These requests target CSAA's obligations under the implied covenant of good faith and fair dealing (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566; *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809), the duty to investigate potential coverage (*Bartel v. Chicago Title Insurance Co.* (2025) 99 Cal.App.5th ____), the Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit. 10, § 2695.7), and the Unfair Claims Practices Act (Ins. Code § 790.03(h)). These rules govern CSAA's investigation of third-party bodily injury

claims, prohibit misrepresenting a “concluded” investigation when foundational evidence was not sought, and require a neutral, truth-seeking investigation before denying liability.

REQUESTS FOR ADMISSION: THIRD-PARTY BODILY INJURY APPLICATION

REQUEST FOR ADMISSION NO. 1:

Admit that CSAA owed its insured a duty of good faith and fair dealing in investigating and defending claims by third parties, including the plaintiff in the underlying pedestrian collision.

REQUEST FOR ADMISSION NO. 2:

Admit that the Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit. 10, § 2695 et seq.) and Insurance Code section 790.03(h) apply to CSAA’s handling of third-party bodily-injury claims against its insured.

REQUEST FOR ADMISSION NO. 3:

Admit that CSAA’s handling of the underlying pedestrian claim could expose its insured to excess judgment, punitive exposure, or findings of fraud on the court.

REQUEST FOR ADMISSION NO. 4:

Admit that CSAA was required to obtain and evaluate 911, BWC, and CAD records as part of a good-faith investigation of the pedestrian’s claim against its insured.

REQUEST FOR ADMISSION NO. 5:

Admit that CSAA was required to act as a neutral, truth-seeking investigator in evaluating the pedestrian’s claim, not solely as an adversary.

REQUESTS FOR ADMISSION: FAILURE TO INVESTIGATE

REQUEST FOR ADMISSION NO. 6:

Admit that prior to issuing the February 25, 2021 denial letter (or any denial of the plaintiff’s claim), CSAA had not obtained the 911 call recording from SFPD relating to the February 4, 2021 incident.

REQUEST FOR ADMISSION NO. 7:

Admit that prior to issuing the February 25, 2021 denial letter (or any denial of the plaintiff’s

1 claim), CSAA had not obtained body-worn camera (BWC) footage from SFPD relating to the
2 February 4, 2021 incident.

3 **REQUEST FOR ADMISSION NO. 8:**

4 Admit that prior to issuing the February 25, 2021 denial letter (or any denial of the plaintiff's
5 claim), CSAA had not obtained CAD records from SFPD relating to the February 4, 2021 incident.

6 **REQUEST FOR ADMISSION NO. 9:**

7 Admit that CSAA's February 25, 2021 denial letter affirmatively represented that its investigation
8 into the claim was "concluded."

9 **REQUEST FOR ADMISSION NO. 10:**

10 Admit that the representation in the denial letter that the investigation was "concluded" was false
11 at the time it was made.

12 **REQUEST FOR ADMISSION NO. 11:**

13 Admit that 911 recordings, BWC footage, and CAD records are standard, readily obtainable law-
14 enforcement materials that a reasonable insurer would treat as relevant to liability and coverage for
15 a pedestrian collision.

16 **REQUEST FOR ADMISSION NO. 12:**

17 Admit that CSAA did not request the 911 recording from SFPD before issuing its denial (or before
18 the date stated in your response to Request for Admission No. 6).

19 **REQUEST FOR ADMISSION NO. 13:**

20 Admit that CSAA's claim file contains no record of a request to SFPD for the 911 recording before
21 February 25, 2021.

22 **REQUEST FOR ADMISSION NO. 14:**

23 Admit that under California law an insurer may not deny a claim without first conducting a reason-
24 able investigation into all facts that might support coverage. (*Egan v. Mutual of Omaha Ins. Co.*
25 (1979) 24 Cal.3d 809.)

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Franciscus Dylan Rosario,
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CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S SPECIAL
INTERROGATORIES TO DEFENDANT
CSAA, SET THREE**

[Code Civ. Proc., § 2030.010 et seq.]

INSTRUCTIONS

Pursuant to Code of Civil Procedure sections 2030.010 et seq., Plaintiff Franciscus Dylan Rosario propounds the following Special Interrogatories (Set Three) to Defendant CSAA Insurance Exchange. Responses are due within 30 days of service.

Purpose and Legal Framework: These Special Interrogatories seek narrative explanations regarding the matters contained in Plaintiff's Requests for Admission (Set Three). They probe CSAA's obligations under the implied covenant of good faith and fair dealing (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566; *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809), the duty to investigate potential coverage (*Bartel v. Chicago Title Insurance Co.* (2025) 99 Cal.App.5th ___), the Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit. 10, § 2695.7), and the Un-

1 fair Claims Practices Act (Ins. Code § 790.03(h)). These rules govern investigation of third-party
2 bodily injury claims and prohibit misrepresenting a “concluded” investigation when foundational
3 evidence was not sought.

4 **SPECIAL INTERROGATORIES: THIRD-PARTY BODILY INJURY**

5 **SPECIAL INTERROGATORY NO. 1:**

6 Identify every CSAA policy, guideline, or training material that describes CSAA’s duties when
7 investigating or defending third-party bodily-injury claims against an insured.

8 **SPECIAL INTERROGATORY NO. 2:**

9 State whether CSAA takes the position that its duty to investigate or to settle in good faith is
10 different when the claimant is a third-party pedestrian rather than the policyholder. If so, describe
11 the difference and identify all documents supporting that position.

12 **SPECIAL INTERROGATORY NO. 3:**

13 Identify every person at CSAA responsible for supervising or reviewing the investigation of the
14 underlying pedestrian claim against its insured, and state what steps each took to ensure 911,
15 body-worn camera (BWC), CAD logs, and supplemental law-enforcement evidence was obtained
16 and considered.

17 **SPECIAL INTERROGATORY NO. 4:**

18 State whether CSAA communicated to its insured that it would investigate the pedestrian’s claim
19 thoroughly, including by obtaining 911, BWC, CAD logs, and law-enforcement records. If so,
20 identify all such communications.

21 **SPECIAL INTERROGATORY NO. 5:**

22 Identify all communications between CSAA and the California Department of Insurance, or inter-
23 nal CSAA documents, that refer to the application of Fair Claims Settlement Practices (Cal. Code
24 Regs., tit. 10, § 2695.7) or Insurance Code section 790.03(h) to third-party bodily-injury claims.

SPECIAL INTERROGATORIES: FAILURE TO INVESTIGATE AND MISREPRESENTATION

SPECIAL INTERROGATORY NO. 6:

Identify every document CSAA obtained and reviewed before issuing the February 25, 2021 denial letter (or before its first denial of the plaintiff's claim).

SPECIAL INTERROGATORY NO. 7:

Identify every investigative step CSAA took between February 4, 2021 and February 25, 2021 (or between the date of loss and the date of first denial).

SPECIAL INTERROGATORY NO. 8:

Identify every person CSAA contacted as part of its investigation before February 25, 2021 (or before first denial).

SPECIAL INTERROGATORY NO. 9:

State whether CSAA requested or attempted to obtain the 911 call recording from SFPD before February 25, 2021. If yes, state the date(s), method(s), and result(s). If no, state why not.

SPECIAL INTERROGATORY NO. 10:

State whether CSAA requested or attempted to obtain BWC footage or CAD records from SFPD before February 25, 2021. If yes, state the date(s), method(s), and result(s). If no, state why not.

SPECIAL INTERROGATORY NO. 11:

Identify all CSAA policies, manuals, or training materials governing when a claim investigation may be described as "concluded" or "thorough," and state all facts supporting any contention that an investigation into a pedestrian collision can be truthfully "concluded" without requesting the 911 call audio.

SPECIAL INTERROGATORY NO. 12:

If you deny that the representation in the denial letter that the investigation was "concluded" was false at the time it was made, describe every fact, document, and witness testimony you rely upon to contend that your representation of a "concluded" investigation in the February 25, 2021 denial letter was true and not a misrepresentation of a pertinent fact under Insurance Code section 790.03(h)(1).

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
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**Franciscus Dylan Rosario,
PLAINTIFF,**

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

**Case No.: CGC-25-631802
PLAINTIFF'S EXHIBIT D**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Wong RT 11 excerpt (pp. 7-8 pins): Vehicle Code not part of the evidence, period

Bates: P-OPP-EXD-0001 et seq. | Tx 79843899 / FSX 79843794 (cross-ref 79830359)

Source: FILE-TODAY-WONG-RECON/02-EXHIBITS-WONG-RT11-A-C.pdf pages containing RT Day 11 instruction.

Disclaimer: Lodged as evidence-practice / incomplete-adjudication context only. Not a request that Dept. 302 reverse Wong or decide appeal A173827.

Use: Decl. paragraphs 22-23; Opp. MPA Args. I.C, VII.

Lodged ISO Plaintiff's Opposition to Defendant's Vexatious Litigant Motion.

Assembled July 21, 2026. Do not treat this cover as a reverse-Wong or A173827 ask.

1 question number one means that either somebody has
2 accessed external information specifically about
3 vehicle codes in order to clarify.

4 The Defense should have also -- if they
5 wanted to have those codes in there, they should have
6 provided them to the Jury. They did not.

7 Both of those facts prove there is extraneous
8 Juror misconduct of accessing external information
9 that severely prejudices my case.

10 THE COURT: All right. Is the matter
11 submitted?

12 MR. ROSARIO: Yeah. Thank you, Your Honor.

13 MS. NAVARATNASINGHAM: Yes.

14 THE COURT: All right. First, the motion for
15 a mistrial is denied.

16 With regard to Jury request form number one,
17 first of all, you did not object to the language that
18 was submitted to the Jury.

19 The Court presented that response in Jury
20 request number one to each party before delivering it
21 to the Jury.

22 You've waived that request, sir.

23 In that matter, with regard to Jury request
24 form number one, the Court answered: You may not
25 consider Vehicle Code Sections 22107 and or 21804
26 subdivision A, nor will the Court instruct the Jury on
27 those provisions.

28 That is a sufficient instruction for the Jury

1 to abide by.

2 There has been no evidence that the Jury has
3 considered that as a part of its deliberations.

4 Further, I will point out -- I don't think I
5 needed to point this out -- but neither Vehicle Codes
6 Section 22107 nor 21804 subdivision A were part of the
7 evidence.

8 They simply are not permitted to consider
9 that as evidence in the case, period.

10 Now turning to Jury request form number two,
11 the relevant request here from the Jury, in pertinent
12 part, "Is there a relevant legal definition of
13 'vehicle?', close quote" that we should consider in
14 assessing this testimony?"

15 Question.

16 Answer: Vehicle Code Section provides,
17 quote, "a vehicle is a device by which any person or
18 property may be propelled, moved or drawn upon a
19 highway excepting a device moved exclusively by human
20 power or used exclusively upon stationery rails or
21 tracks."

22 Vehicle Code Section 360 defines "highway"
23 as: "A way or place of whatever nature publicly
24 maintained and open to the use of the public for
25 purposes of vehicle travel. 'Highway' includes
26 street," close quote.

27 The Court -- even if this was something that
28 was gratuitous on the part of the Court, the Court is

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**Franciscus Dylan Rosario,
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CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

**Case No.: CGC-25-631802
PLAINTIFF'S EXHIBIT E**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

ROA motion-stack chart (leave / anti-SLAPP / demurrer / CCP 436 / opp leave)

Bates: P-OPP-EXE-0001

Source: Verified inventory in Plaintiff Decl. paragraphs 10-12 (cross-ref RFJN Ex. B ROA).

One-pager demonstrative; not a substitute for the clerk register of actions.

Use: Decl. paragraphs 10-14.

Lodged ISO Plaintiff's Opposition to Defendant's Vexatious Litigant Motion.

Assembled July 21, 2026. Do not treat this cover as a reverse-Wong or A173827 ask.

PLAINTIFF'S EXHIBIT E

ROA Motion-Stack Chart (CGC-25-631802)

Verified inventory from Plaintiff Decl. paragraphs 10-12 / RFJN Ex. B cross-reference

Bates: P-OPP-EXE-0001 | Assembled July 21, 2026

Defense multi-motion stack versus Plaintiff's leave / SAC path

Date	Filing (verified chronology)
2026-04-09	Defendant Special Motion to Strike (anti-SLAPP) filed
2026-04-13	Defendant Demurrer to First Amended Complaint filed
2026-04-16	Plaintiff Motion for Leave to File Second Amended Complaint filed
2026-04-22	Defendant Motion to Strike (CCP section 436) filed
2026-04-23	Defendant Opposition to Motion for Leave to File SAC filed
2026-04-28	Plaintiff Motion for Leave to File Third Amended Complaint filed
2026-05-12	Defendant Opposition to TAC leave motion filed

Use: Decl. paragraphs 10-14; opposition to section 391(b)(3) delay characterization. This chart is a demonstrative of the ROA sequence; it is not a substitute for the clerk register.